

CHAPTER 41.

An Act to amend the law with respect to the school leaving age, and attendance at school; to enable local education authorities to make grants to non-provided schools in certain cases, and to amend the law in relation to schools receiving such grants; to amend the law with respect to religious instruction in certain non-provided schools; to amend the law with respect to the age up to which certain provisions of Part II of the Children and Young Persons Act, 1933, have effect; and for purposes connected with the matters aforesaid.

[31st July 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Provisions with respect to school attendance.

Compulsory
school age
to be raised
to fifteen.

11 & 12
Geo. 5. c. 51.

1.—(1) Subject to the provisions of this Act, the age of fifteen shall be the age up to which byelaws under Part IV of the Education Act, 1921 (hereinafter called "the principal Act"), shall require parents to cause their children (unless there is some reasonable excuse) to attend school.

(2) The amendments set out in the First Schedule to this Act (being amendments consequential on the provisions of the last preceding subsection) shall be made in the enactments specified in that schedule.

(3) Any byelaw in force on the appointed day requiring the parents of children to cause them to attend school up to any age less than fifteen years shall have effect as if for that age there were substituted the age of fifteen, and any provision of a byelaw in force on the appointed day whereby any children between the ages of fourteen and fifteen may be exempted from attendance at school shall cease to have effect.

(4) This section shall not apply in the case of children born on or before the first day of September, nineteen hundred and twenty-five, and the principal Act and any byelaws made thereunder shall have effect with respect to those children as if this Act had not been passed.

2.—(1) Byelaws relating to school attendance shall not apply to any child who has attained the age of fourteen and in respect of whom an employment certificate within the meaning of this section has been granted by the local education authority of the area in which the child resides (hereinafter called the issuing authority), and is for the time being in force.

Provisions with respect to employment certificates.

(2) An employment certificate shall be granted to the intended employer of the child, if the issuing authority are satisfied that the parent of the child desires the employment for the child and are also satisfied, after consultation with the local committee for juvenile employment, if any, and after consideration of the health and physical condition of the child, that the employment will be beneficial to the child.

(3) Every employment certificate shall state the date from which it is to have effect, and that date, unless in any particular case owing to exceptional circumstances the issuing authority otherwise determine, shall not be a date falling in a school term.

(4) The issuing authority in determining whether any employment will be beneficial shall have regard as well to the prospective as to the immediate benefit to the child, and in particular to—

- (a) the nature and probable duration of the employment, the wages to be paid, and the hours of work;
- (b) the opportunities to be afforded to the child for further education;
- (c) the time available to the child for recreation; and
- (d) the value, in relation to the future career of the child, of any training or other advantages afforded by the employment;

and the determination of the authority shall be conclusive.

(5) The issuing authority shall, as a condition precedent to the grant of a certificate, require such undertakings from the employer as they think necessary—

- (a) in connection with all or any of the matters mentioned in paragraphs (a), (b) and (c) of the last preceding subsection;
- (b) for enabling the authority to satisfy themselves that the employment has not, by reason of any change in the conditions of the employment or for any other reasons, ceased to be beneficial to the child;

and shall specify in the certificate the terms of any undertaking so given.

(6) Before granting a certificate relating to employment in the area of another local education authority, the issuing authority shall, unless arrangements made between the two authorities otherwise provide, give notice to that other authority of their intention to grant the certificate, and if the other authority, within seven days of the receipt of the notice, notify the issuing authority that they would not themselves hold the employment to be beneficial for children residing in that area, or that the date from which the certificate is to have effect should be determined so as not to fall in a school term of that area, the certificate shall not be granted in relation to that employment in that area, or the said date shall be determined as aforesaid, as the case may be:

Provided that no parent or employer shall incur any liability by acting on the faith of an employment certificate granted by a local education authority by reason only that the certificate was granted in contravention of the provisions of this subsection, or in breach of any arrangements made with any other local education authority.

(7) Where the parent of a child attending a secondary or other school has made a contract with a local education authority or other body whereby he undertakes that the child shall continue to attend school until at least the age of fifteen years, no employment certificate shall be granted with respect to that child without the consent of that authority or body.

3.—(1) An employment certificate shall cease to have effect—

- (a) if the child in respect of whom it was granted to the employer does not enter the employment of that employer within twenty-one days after the date stated in the certificate as the date from which the certificate is to have effect; or
- (b) if and so soon as the child ceases to be employed by that employer.

Employment certificates to cease to have effect in certain cases.

(2) The issuing authority may, if any term of an undertaking given by an employer and specified in the certificate is not observed by the employer, or if it appears to them that a child in respect of whom a certificate has been given has failed to make use of opportunities for further education afforded to him in pursuance of such an undertaking, or that by reason of any change in the conditions of the employment or for any other reasons the employment has ceased to be beneficial to the child, give the employer notice in writing of their intention to cancel the certificate.

(3) A certificate shall, if the notice to cancel is not withdrawn, cease to have effect on the expiration of seven days from the date of the notice.

(4) The issuing authority shall give to the parent of any child in respect of whom a certificate is granted a copy of the certificate and of any notice given by the authority of their intention to cancel the certificate.

(5) Every employment certificate ceasing by virtue of the provisions of this section to have effect shall be forthwith returned by the employer to the issuing authority.

4.—(1) Where an employment certificate has ceased to have effect, then—

- (a) if the child in respect of whom it was granted attends with the consent of the local education authority a course of instruction approved by them (hereinafter called an alternative course) his attendance thereat shall, unless and until the consent is withdrawn, be deemed for the purposes of the principal Act to be attendance at school; and

Supplemental provisions with respect to certificates ceasing to have effect.

(b) the child shall for the purposes of the principal Act, and notwithstanding anything in section one hundred and seventy of that Act, be deemed to be a child so long as his parent continues to be required under or by virtue of this Act to cause him (unless there is some reasonable excuse) to attend school or to attend an alternative course.

25 & 26

Geo. 5. c. 8.

(2) A child attending an alternative course shall, for the purposes of section thirty-seven of the Unemployment Insurance Act, 1935 (which relates to increase of benefit in respect of dependent children), and notwithstanding anything in that section, be deemed to be under full-time instruction at a day school.

Power to
permit
withdrawal
from school
in certain
cases.

5.—(1) Where the local education authority are satisfied that by reason of circumstances existing in the home of a child who has attained the age of fourteen years exceptional hardship would otherwise be caused, they may after consideration of the health and physical condition of the child give permission to the parent to withdraw the child from school upon such conditions as the authority think fit for the purpose of enabling the child to give assistance in the home, and that permission shall, unless and until the authority notify the parent that it is cancelled, be deemed to be a reasonable excuse for non-compliance with a byelaw requiring the parent to cause the child to attend school.

(2) Permission shall not be given under this section for the withdrawal of a child from school save for a period ending not later than the end of the school term then current or, if permission is given in the interval between two school terms, not later than the end of the next succeeding term:

Provided that nothing in this subsection shall prohibit a local education authority from renewing a permission, if they think fit to do so, and the provisions of this section shall apply to the renewal of a permission as they apply to the giving of permission in the first instance.

Amendment
of 23 & 24
Geo. 5. c. 12.

6. Sections eighteen and twenty-two of the Children and Young Persons Act, 1933 (which relate respectively to restrictions on the employment of children and on their taking part in entertainments) and any byelaws relating

to the employment of children in force under or by virtue of that Act on the appointed day shall have effect with respect to any child, notwithstanding that he may have attained the age of fourteen, whose parent is required under or by virtue of this Act to cause him (unless there is some reasonable excuse) to attend school or to attend an alternative course.

7. Byelaws made under Part IV of the principal Act before the appointed day may provide that sections two to six of this Act shall, from the date on which the byelaws come into operation, apply in the case of any child who has attained the age of fourteen and to whom the byelaws apply and, where such byelaws are made, exemption from the obligation to attend school shall not be granted to any child under subsection (3) of section forty-six of the principal Act :

Provisions with respect to byelaws made before the appointed day.

Provided that the grant of a certificate relating to employment in the area of an authority other than the issuing authority shall not be subject to the provisions of subsection (6) of the said section two unless the said sections two to six have been applied in that area.

Provisions with respect to grants for non-provided schools.

8.—(1) Subject to the provisions of this Act, a local education authority shall have power, for the benefit of senior children, to enter into an agreement—

Power of local education authority to make grants for enlarging, &c. non-provided schools.

(a) with any person or persons duly authorised in that behalf by resolution of the managers of any public elementary school maintained but not provided by the authority, with respect to proposals for the enlargement or improvement of the school;

(b) with persons proposing to provide a new public elementary school for senior children, with respect to proposals for that purpose ;

and may, subject to such terms and conditions as may be specified in the agreement, make a grant to those managers or persons.

(2) No proposals shall be entertained by a local education authority unless submitted to them, with such particulars as the authority may in the circumstances of

the case under consideration deem sufficient for the purposes of negotiation, before a date not less than eighteen months before the appointed day or before such later date, being not less than twelve months before the appointed day, as in any particular case they may allow:

Provided that, if the Board of Education are satisfied that any proposals entertained by a local education authority (whether or not an agreement has been entered into in respect of them) have become impracticable or undesirable owing to any decision made or action taken before the appointed day by any planning or housing authority, the Board may, notwithstanding anything in this subsection, allow new proposals to be entertained.

(3) A local education authority shall not enter into any such agreement as aforesaid, unless they are satisfied that the carrying out not later than one year after the appointed day of the proposals with respect to which the agreement is made—

- " (a) would provide increased accommodation for senior children rendered necessary by the raising of the school leaving age to fifteen years; or
- (b) would give effect in relation to senior children to arrangements for improving the organisation of education in the area of the authority; or
- (c) would provide accommodation required for practical or advanced instruction for senior children.

(4) A local education authority shall not enter into any such agreement as aforesaid with respect to the provision of a new public elementary school, unless in addition they satisfy the Board of Education—

- (a) that the needs of the district can be more conveniently met by the proposed school than by the enlargement or improvement of any existing school not provided by the authority, being a public elementary school in which religious instruction is given of the same kind as that

intended to be given in the proposed new school; or

- (b) that the proposed school will be required wholly or mainly for senior children who before attaining the age of eleven years have attended, or will attend, an existing or future school not provided by the authority, being a public elementary school in which religious instruction is, or will be, given of the same kind as that intended to be given in the proposed new school.

For the purposes of this paragraph a school shall not be regarded as a "future school" unless its provision has been sanctioned by the Board of Education before the agreement is made.

(5) A grant made in pursuance of the powers conferred by this section shall be not less than one-half and not more than three-quarters of the amount determined in accordance with the provisions of the agreement to represent the cost of carrying out the proposals with respect to which the agreement is made, so far as that cost is attributable to provision for senior children:

Provided that no grant shall be made in respect of any part of the cost attributable to the provision, enlargement or improvement of a teacher's dwelling-house.

(6) Where a local education authority have agreed to make a grant under this section, and the cost of carrying out the proposals with respect to which the grant is made is attributable in whole or in part to the purchase of land, the authority shall have power themselves to purchase the land and to permit it to be used, and to convey it, or cause it to be conveyed, for the purpose of carrying out the proposals:

Provided that the land so purchased by the authority shall not be used or conveyed as aforesaid until, either by set-off against a payment on account of the grant or otherwise, all expenses of or incidental to the purchase have been repaid to the authority.

(7) An agreement made under this section shall not affect the duty of the managers, after the carrying out of the proposals with respect to which the agreement is

made, to discharge the obligations imposed on them by paragraph (d) of subsection (2) of section twenty-nine of the principal Act, relating to the repair, alteration and improvement of a school-house.

(8) Nothing in this section shall affect the provisions of subsection (1) of section eighteen of the principal Act relating to the provision of new schools.

(9) The enlargement of an existing public elementary school shall, notwithstanding anything in subsection (2) of the said section eighteen, not be treated for the purposes of this section as the provision of a new school.

Power to
include
certain pro-
visions in
agreements,
&c.

9.—(1) An agreement made under the last preceding section may contain provisions with respect to the following matters, that is to say—

(a) the employment or continued employment to such an extent and in such posts as may be specified in the agreement of teachers fit and competent to give religious instruction in accordance with the provisions of paragraph (c) of subsection (5) of section twenty-nine of the principal Act (hereinafter called reserved teachers);

(b) the giving of religious instruction in the school in such manner as may be agreed in accordance with a syllabus in use in schools provided by the local education authority.

(2) The managers for the time being of a school in respect of which the local education authority have made a grant under this Act shall have the right to repay the grant to the authority at any time while the school is being carried on as a public elementary school not provided by the authority, and the agreement shall cease and determine so soon as the grant has been repaid in full.

(3) The terms of any agreement may from time to time be varied by mutual consent of the authority and of the managers for the time being, but not so as to include any provisions which could not lawfully have been included in the original agreement.

10.—(1) Where a grant is made by a local education authority under this Act in respect of any school, the following provisions shall apply to the school, unless and until the grant so made is repaid in full to the authority, that is to say:—

Provisions with respect to schools to which grants are made.

- (a) all teachers therein shall be in the employment and under the control of the local education authority, but without prejudice to the provisions of paragraph (c) of subsection (5) of section twenty-nine of the principal Act as respects any reserved teachers;
- (b) the authority shall have the exclusive power of appointing teachers, but before appointing any reserved teacher they shall consult the managers, and, unless the managers are satisfied as to the teacher's fitness and competence to give religious instruction in accordance with the provisions of paragraph (c) of the said subsection (5), the authority, notwithstanding the provisions of paragraph (a) of that subsection, shall not appoint him to be a reserved teacher;
- (c) the authority shall have the exclusive power of dismissing teachers, but, if the managers are of opinion that any reserved teacher has failed to give religious instruction as aforesaid efficiently and suitably, they may request the authority to remove him from employment as a reserved teacher in the school;
- (d) if any dispute arises between the authority and the managers with respect to the appointment or removal of a reserved teacher, the matter shall unless the parties to the dispute otherwise agree be determined in accordance with the provisions of the Second Schedule to this Act, and those provisions shall have effect accordingly;
- (e) if at any time the managers are unable or unwilling to carry on the school as a public elementary school, the Board of Education may make such orders in accordance with the provisions of the Third Schedule to this Act as they

may consider necessary for the purpose of securing that the school is so carried on, and the provisions of that schedule shall have effect with respect to such orders and with respect to orders for compulsory purchase.

(2) The provisions of the last preceding subsection shall have effect from the date of the first payment by the local education authority on account of the grant.

Compensation for teachers in certain cases, &c.

11.—(1) A teacher in a public elementary school, appointed to his office at a time when the school was not subject to an agreement made under the provisions of this Act, who—

(a) loses his office by reason of his dismissal by the local education authority under the last preceding section in circumstances in which he would not have been dismissed by the managers; or

(b) by reason of the last preceding section or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by diminution or loss of fees, salary or emoluments,

shall, if provision is not made by any other enactment for the time being in force for his compensation for that loss, be entitled to compensation under this Act, and the provisions of the Fourth Schedule to the Local Government Act, 1933, shall, with the modifications set out in the Fourth Schedule to this Act, apply to the determination and payment of that compensation.

23 & 24
Geo. 5. c. 51.

(2) Any compensation payable under the last preceding subsection shall be payable as part of the expenses incurred by the local education authority for the purposes of elementary education, and the payment of a lump sum by way of compensation shall be a purpose for which the authority may borrow.

(3) A teacher in a public elementary school, other than a reserved teacher, appointed to his office at a time when the school is subject to an agreement made under the provisions of this Act, shall not without the consent of the local education authority after the termination of the

agreement be dismissed from his office on grounds connected with the giving of religious instruction in the school unless the managers allow him compensation for the loss of his office upon such terms and with such security as may be agreed or as may, in default of agreement, be approved by the Board of Education, but so that the Board shall not approve terms which in their opinion are less favourable to the teacher than they would have been if determined under subsection (1) of this section.

Provisions with respect to religious instruction in certain schools and with respect to withdrawal from attendance at school during periods of religious instruction.

12.—(1) Where a public elementary school maintained but not provided by the local education authority is attended by children whose parents—

- (a) desire them to receive religious instruction in accordance with a syllabus in use in schools provided by the authority; and
- (b) cannot with reasonable convenience cause them to attend a school provided by a local education authority;

Provisions with respect to religious instruction in non-provided schools.

such instruction shall be given in the school, on the days of the week and during the times which are specified for the purpose in the time-table of the school, to the children whose parents desire them to receive it, unless any special circumstances make this requirement unreasonable.

(2) If the managers are unwilling to make reasonable arrangements for the giving of such instruction, the authority shall make reasonable arrangements for it to be given in the school under the control of the authority, but save as aforesaid nothing in this section shall affect the provisions of paragraph (c) of subsection (5) of section twenty-nine of the principal Act.

(3) If any question arises under this section between the authority and the managers, that question shall, in default of agreement, be referred to the Board of Education, and any directions given by the Board on such a reference shall have effect until they are withdrawn.

Provisions
with respect
to with-
drawal from
school
during
periods of
religious
instruction.

13. Where the local education authority are satisfied that a public elementary school maintained by the authority, whether provided or not provided by them, is attended by children whose parents—

- (a) desire them to receive religious instruction of a kind which is not given in the school; and
- (b) cannot with reasonable convenience cause them to attend a public elementary school in which such instruction is given;

any child attending the school may, notwithstanding any byelaw relating to school attendance, be withdrawn from the school during any time allotted in the time-table of the school to religious observance or instruction, if his parent so desires and if the local education authority are satisfied that arrangements have been made for him to attend religious observance or instruction elsewhere.

General.

Provision
of money
by Par-
liament.

14. Any sums by which any education grants payable under any Act are increased by reason of expenditure incurred under this Act by local education authorities on or in connection with grants for non-provided schools (being grants for the purposes of the education of senior children) or on or in connection with compensation to teachers at non-provided schools for which grants are so made by such authorities shall be defrayed out of moneys provided by Parliament.

Interpreta-
tion.

15.—(1) In this Act, unless the context otherwise requires—

“Appointed day” means the first day of September, nineteen hundred and thirty-nine;

“Enlargement or improvement” includes the provision of additional or substituted land or buildings whether within or without the curtilage of the school;

“Local committee for juvenile employment” means, in relation to any child, a local advisory committee for juvenile employment in the area where the child resides, established by the Minister of Labour or constituted under any

scheme approved by him under section eighty-one of the Unemployment Insurance Act, 1935;

“School” includes a separate department of a school;

“Senior children” means children who have attained the age of eleven years.

(2) For the purposes of the Unemployment Insurance Act, 1935, a child, in respect of whom an employment certificate has been granted under this Act, shall as from the date from which the certificate has effect, and notwithstanding that it may thereafter cease to have effect, be deemed to have attained the minimum age for entry into insurance.

(3) Nothing in this Act affects the provisions of Part V of the principal Act relating to the education of blind, deaf, defective and epileptic children.

16.—(1) This Act may be cited as the Education Act, 1936, and this Act and the Education Acts, 1921 to 1933, may be cited together as the Education Acts, 1921 to 1936.

Short title,
commence-
ment, con-
struction
and extent

(2) Sections one to six of, and the First Schedule to, this Act shall not come into force until the appointed day:

Provided that nothing in this subsection affects the power conferred by section seven of this Act to apply sections two to six of this Act for the purposes of certain byelaws.

(3) Except where the context otherwise requires, references in this Act to the principal Act or to any provision thereof shall be construed as references to that Act or provision as amended by any subsequent enactment, including this Act, and this Act shall be construed as one with the principal Act.

(4) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES.

Sections 1(2),
6(2).

FIRST SCHEDULE.

ENACTMENTS TO BE AMENDED.

Education Act, 1921.

- Section 20 - - For the word "fourteen" there shall be substituted the word "fifteen".
- Section 46 - - In subsection (2), for the words "such age not being less than fourteen nor more than fifteen as may be fixed by the byelaws" there shall be substituted the words "the age of fifteen years"; and subsection (3) shall be omitted.

13 & 14
Geo. 5. c. 38.

Education (Institution Children) Act, 1923.

- Section 1 - - In subsection (4) for the word "fourteen" there shall be substituted the word "fifteen".

Section 10(1)
(d).

SECOND SCHEDULE.

PROVISIONS FOR DETERMINATION OF DISPUTES.

1. Any dispute arising between the local education authority and the managers of a public elementary school with respect to the appointment or removal of a reserved teacher shall, unless the parties to the dispute otherwise agree, be determined by an impartial person appointed for the purpose by the Board of Education.

2. The person so appointed—

- (a) shall give the parties to the dispute and, if he or either of the parties thinks it expedient, the teacher with respect to whose appointment or removal the dispute has arisen, a full opportunity of appearing before him either in person, or by their representatives, but, save as aforesaid, may conduct the proceedings in such manner as he in his discretion may think fit;
- (b) shall transmit his decision in writing to the Board, and shall furnish a copy thereof to the parties to the dispute.

3. The local education authority and (according to the circumstances of the case) the bishop of the diocese or such other person or body as the Board may nominate for the purpose may each appoint an assessor to sit with the person appointed as aforesaid by the Board, but the assessors shall take no part in the determination of the dispute.

2ND SCH.
—cont.

4. The Board may, if, having regard to the decision of the person appointed to determine the dispute, it appears to them reasonable that such an order should be made, order the whole or any part of the costs of the inquiry to be paid by one or other of the parties, or by both parties in such proportions as the Board may direct.

5. Any such order as is mentioned in the last preceding paragraph shall certify the amount to be paid by the party or parties by whom it is ordered to be paid, and the amount so certified shall, without prejudice to the recovery thereof as a debt due to the Crown, be recoverable by the Board summarily as a civil debt from the party or parties by whom it is ordered to be paid.

THIRD SCHEDULE.

Section 10
(1) (e).

PROVISIONS FOR SECURING THE CONTINUANCE AS PUBLIC ELEMENTARY SCHOOLS OF SCHOOLS ASSISTED BY GRANTS UNDER THIS ACT.

1. An order made by the Board of Education under paragraph (e) of subsection (1) of section ten of this Act may direct—

- (a) that subsection (2) of section forty of the principal Act shall apply to the school as if the managers had at the date of the order given eighteen months' notice to the local education authority of their intention to close the school in accordance with subsection (1) of that section;
- (b) that an arrangement for transferring the school to the local education authority in so far as may, in the opinion of the Board, be necessary for securing that it is carried on as a public elementary school shall be made under section thirty-eight of the principal Act.

2. If at the expiration of six months from the date of any such order requiring the transfer of the school the requirements of the order have not been complied with, the Board of Education may by order transfer to the local education authority any property, rights or interests in the school which might have been

3RD SCH.
—cont.

transferred to them by or in pursuance of such an arrangement as aforesaid, if all consents and assents required by Part I of the Fourth Schedule to the principal Act had been given to the arrangement :

Provided that no order made under this paragraph shall—

(a) interfere with any right given to any person by the trusts of a school to use the school for any particular purpose independently of the managers, except with the consent of that person ;

(b) affect any teacher's dwelling-house.

20 & 21
Geo. 5. c. 50.

3. Any order made in accordance with the provisions of section one hundred and eleven of, and the Fifth Schedule to, the principal Act, or of the Public Works Facilities Act, 1930, authorising a local education authority to purchase compulsorily any estate or interest in the school-house which cannot be transferred to them under the foregoing provisions of this Schedule shall provide that any compensation payable by the authority in respect of the estate or interest shall be reduced by the amount, if any, by which the value thereof is estimated by the arbitrator to have been increased by any grant made under this Act.

FOURTH SCHEDULE.

Section 11
(1).

MODIFICATIONS OF THE FOURTH SCHEDULE TO THE LOCAL GOVERNMENT ACT, 1933, AS APPLIED BY THIS ACT.

The Fourth Schedule to the Local Government Act, 1933, shall, in its application to the determination and payment of compensation under this Act, have effect subject to the following modifications, that is to say :—

1. References to a scheme or order shall be construed as references to this Act; references to a local authority shall be construed as references to a local education authority; and references to the Minister of Health shall be construed as references to the Board of Education.

2. In sub-paragraph (1) of paragraph 1, after the word "prescribed" there shall be inserted the words "by the Board of Education."